

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-23

**Marine Transport Logistics, Inc. v. CMA
CGM, S.A.**

**RESPONDENT’S NOTICE OF INTENT TO ENFORCE SUBPOENAS AGAINST
THIRD PARTY CIS DEVELOPMENT FOUNDATION, INC.**

Pursuant to FMC Rule 150(c), 46 C.F.R. 502.150(c), Respondent CMA CGM, S.A. (Respondent or CMA) hereby gives notice of its intent to seek enforcement of two subpoenas previously issued by the Presiding Officer and served on Third Party CIS Development Foundation, Inc. (“CIS”).

The two subpoenas – one for documents and the other for testimony – were served on CIS on December 15, 2023, as reflected in the filing of the subpoenas and the affidavits of service filed with the Commission on January 10, 2024. CIS has neither complied with nor moved to quash either subpoena. And when counsel for CMA contacted CIS in an effort to resolve the matter without the need for enforcement, CIS apparently complained to counsel for MTL, who directed us to stop contacting CIS, even though he acknowledges that he does not represent CIS. Informal methods having failed, CMA currently intends to seek enforcement of the subpoenas in the appropriate federal district court, as authorized by Rule 150(c).

DATED: January 11, 2024

Respectfully submitted,

/s/ *Rebecca A. Fenneman*

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ATTORNEYS FOR RESPONDENT

CERTIFICATE OF SERVICE

I hereby certify that on this 11th day of January, 2024, a true and correct copy of the foregoing ***Notice of Intent to Enforce Subpoena*** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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